

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMIEE ALBERTSON ALDEN,

Petitioner

VS.

JOHN WHITING ALDEN,

Respondent

) Case Number: FDI-24-799176

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHANGE OF CHILD
CUSTODY AND/OR VISITATION (ORDERS) CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Amiee Albertson Alden (Mother) and Respondent John Whiting Alden (Father). The minor children subject to this proceeding are Erik Godfrey Alden (DOB:07/24/09) and Samuel Rockwell Alden (DOB: 06/01/11).
- 2) On February 2, 2026, Father filed a Request for Order seeking a modification of the existing parenting plan. Father seeks an increase in parenting time and an order for family therapy with costs allocated between the parties' pursuant to Family Code section 4061 (as to minor child Erik). Father also requests an order that Mother retain the passport for Erik and Father retain the passport for Samuel.
- 3) On March 16, 2026, the Court referred the parties to Family Court Services (FCS) Mediation on April 15, 2026 and set the matter for a return hearing on May 12, 2026.
- 4) On March 20, 2026, Mother filed a Responsive Declaration, which has been read and considered by the Court.

1 5) On April 13, 2026, Father filed a Reply Declaration, which has been read and considered by the
2 Court.

3 **B. Findings and Order**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child(ren) is the United States.

8 2) Father's request for modification of the existing parenting plan is DENIED.

9 3) Father's request for an order for family therapy is DENIED.

10 4) Father's request that Mother hold one minor child's passport and Father hold the other minor
11 child's passport is DENIED. Mother's request that she hold both passports for the minor children
12 is GRANTED. If Father needs the passports, he shall provide Mother with 30-day notice and
13 Mother shall give Father the passports no later than 10 days before any travel requiring the
14 passports. Father shall return the passports within 72 hours of return from the trip.

15 5) All prior orders not in conflict with the orders made herein shall remain in full force and effect.

16 6) The Court will prepare the Findings and Order After Hearing.
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